

The Morning Briefing

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Politics & Law Edition

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LEAD STORY · SCOTUS & THE JUDICIARY

Administration presses Supreme Court for fast action as second judge blocks mail-in voting order nationwide

Solicitor General D. John Sauer filed a supplemental brief August 12 urging the justices to move quickly on the administration's stay request in *Trump v. California* — the fight over an executive order restricting mail-in ballot mailing in 23 states and Washington, D.C. The trigger: a second, broader nationwide injunction issued August 11 by U.S. District Judge Indira Talwani, this time in a suit brought by the League of Women Voters, barring the Postal Service from implementing the disputed provision anywhere in the country. Sauer's own filings concede the case may not be fully ripe, since agencies have not finalized how the order will be implemented — which means the emergency-relief track is being used to get a substantive ruling fast, ahead of the midterms, without full merits briefing. Full story in the Judiciary section below.

U.S. POLITICS

Senate clears the decks with 90-6 funding patch, punts the real fight to December

Congress is in recess for the rest of August — the House does not return until August 31, the Senate not until September 14 — but not before the Senate passed a clean continuing resolution by a 90-6 vote on August 8. The CR funds the government at FY2026 levels through December 11, extends surface-transportation funding, and delays a contested OMB rule overhauling the Uniform Guidance that governs federal grant administration until the same date.

WHY IT MATTERS

A 90-6 vote is about as close to consensus as the Senate gets these days, but that mostly reflects that nobody wanted a shutdown heading into the midterm stretch, not that the underlying appropriations fights are resolved. They have simply been pushed to December, when the Senate Appropriations Committee is expected to try to finish the twelve regular bills.

Roll Call — rollcall.com/2026/08/08/funding-patch-passes-senate-to-head-off-fall-shutdown/

SCOTUS & THE JUDICIARY

Administration urges fast Supreme Court action on mail-in voting order

Solicitor General D. John Sauer filed a supplemental brief August 12 urging the Supreme Court to move quickly on the administration's pending stay request in *Trump v. California*, No. 26A124 — the fight over Trump's March 31 executive order, which (among other things) bars the Postal Service from mailing ballots to voters not on lists the USPS creates under Section 3 of the order. A coalition of 23 states led by California, plus D.C., is challenging the order; U.S. District Judge Indira Talwani ruled June 25 that their claims regarding the November midterms were ripe and blocked implementation. The 1st Circuit declined to pause that ruling, noting that neither the government nor the 12 states backing it had argued the order was actually legal on the merits.

The catalyst for Wednesday's filing was a second ruling by Talwani on August 11, this time in a suit brought by the League of Women Voters, that bars USPS from implementing Section 3 nationwide on behalf of the

plaintiffs in that case. Sauer called the combined rulings an "extraordinary" threat of irreparable harm, since "the start of mail-in and absentee voting in some States is now just one month away."

WHY IT MATTERS

Sauer's own briefs concede the ripeness question is live, since federal agencies have not finalized implementation. Using the emergency stay docket to get a fast, low-information ruling before the midterms — rather than waiting for full merits briefing — is itself the strategy here, not just the backdrop to it.

SCOTUSblog — scotusblog.com/2026/08/trump-administration-urges-supreme-court-to-issue-a-decision-in-mail-in-voting-dispute/

Second birthright-citizenship order draws immediate court challenge

Five days after the Supreme Court's June 30 ruling in *Trump v. Barbara* struck down his first attempt to restrict birthright citizenship, President Trump signed a new executive order August 6 titled "Continuing to Protect the Meaning and Value of American Citizenship," alongside a

companion order, "Ending Birth Tourism." The new order excludes from citizenship the children of a range of foreign nationals beyond ambassadors — embassy staff, UN and World Bank employees, and anyone designated an "alien enemy" — plus children born to parents who arranged a "commercial transaction" to give birth in the U.S.

On August 11, ACLU-led counsel for the original *Barbara* plaintiffs asked U.S. District Judge Joseph Laplante in New Hampshire to clarify that the June 30 ruling already forecloses the new order. Chief Justice Roberts's opinion, they argued, recognized only narrow exceptions — children of foreign ministers and some tribal members — that cannot be stretched to cover the far larger categories in the new order. "If the President issues 100 orders seeking to create new exceptions to the sacred guarantee of the Citizenship Clause," the challengers wrote, "all 100 will be equally illegal."

WHY IT MATTERS

This is a test of whether a losing administration can relitigate a settled constitutional question through sheer repetition — issuing narrower and narrower orders until one survives, rather than accepting the Court's judgment as final.

SCOTUSblog — [scotusblog.com/2026/08/challenge-brought-to-trumps-new-birthright-citizenship-order/](https://www.scotusblog.com/2026/08/challenge-brought-to-trumps-new-birthright-citizenship-order/)

November calendar set: Catholic preschool case takes aim at *Employment Division v. Smith*

The Court released its November argument calendar August 11, with oral argument set for November 2 through 10. The marquee case is *St. Mary Catholic Parish v. Roy* (argument Nov. 3): whether a Catholic preschool's exclusion from Colorado's universal pre-K program, because it will not admit students on the state's religiously neutral terms, is unconstitutional religious discrimination. The Tenth Circuit rejected the preschool's claim under the Court's 1990 decision in *Employment Division v. Smith*, reasoning that Colorado's rules are neutral and generally applicable. The question presented also asks whether *Carson v. Makin* displaces *Smith* only when government explicitly excludes religious institutions, or more broadly.

Also on the calendar: *Nielsen v. Watanabe* (Nov. 9), testing whether a federal inmate can sue prison officials under *Bivens* for allegedly ignoring a fractured coccyx, and *Department of Labor v. Sun Valley Orchards* (Nov. 10), on the DOL's power to fine employers over the seasonal farm-worker visa program.

WHY IT MATTERS

St. Mary is the vehicle religious-liberty litigators have been waiting for — a serious shot at narrowing or overturning *Smith* outright, more than three decades after Justice Scalia's opinion first gutted strict scrutiny for neutral, generally applicable laws burdening religious exercise.

SCOTUSblog — [scotusblog.com/2026/08/court-announces-cases-it-will-hear-in-november-including-religious-discrimination-dispute/](https://www.scotusblog.com/2026/08/court-announces-cases-it-will-hear-in-november-including-religious-discrimination-dispute/)

ISRAEL & THE MIDDLE EAST

After failed IDF operation, Katz moves West Bank enforcement from army to police amid Qusra siege

For five nights, Israeli settlers have besieged three Palestinian homes on the outskirts of Qusra, south of Nablus, after extremists staked an illegal outpost blocking the families' only way out; food and water supplies have been dwindling. An IDF operation to clear the outpost failed Wednesday after the plan apparently leaked in advance, drawing dozens more settler activists to the site to defend it. Reservist units have reportedly faced court-martial proceedings for sympathizing with the extremists rather than removing them, and the army has taken the unusual step of sending Battalion 51 of the Golani Brigade to take over. Defense Minister Israel Katz responded Thursday by announcing a plan to transfer civilian law-enforcement authority in the West Bank from the IDF to the police, framed as letting the military focus on "Palestinian terrorism" and border security.

ANALYTICAL READ

Taken at face value, this is a security reshuffle. Read more skeptically: an army that could not, or would not, clear five days of an illegal outpost is handing the job to a police force with its own long record of leniency toward settler violence. The practical effect of the reshuffle is plausibly to reduce

friction between soldiers and settlers rather than to protect Palestinian residents — the question of who benefits from the transfer matters more than its official rationale.

Times of Israel — [timesofisrael.com/liveblog-august-14-2026/](https://www.timesofisrael.com/liveblog-august-14-2026/)

Kushner heads to Israel, Cairo to push Gaza disarmament plan facing Israeli resistance

Jared Kushner, Board of Peace representative Nickolay Mladenov, and Tony Blair are set to arrive in Israel Sunday before traveling to Cairo to meet Egyptian, Qatari, and Turkish mediators. The trip is meant to advance the next phase of the U.S.-brokered Gaza plan — Hamas disarmament and an eventual Israeli withdrawal — after reports the plan has run into resistance from the Netanyahu government.

ANALYTICAL READ

Washington and Jerusalem are not working from the same script. The U.S. wants a visible, credible off-ramp from Gaza; a coalition that depends on its far-right flank has every structural incentive to slow-walk withdrawal indefinitely. Whether this visit produces an actual timeline, or another round of statements about "continued talks," is the tell to watch for.

Axios — [axios.com/2026/08/13/kushner-israel-gaza-netanyahu](https://www.axios.com/2026/08/13/kushner-israel-gaza-netanyahu)

Syria's nuclear cleanup floated as a template for Iran — with a catch

Israeli security officials this week pointed to the IAEA's planned removal of Assad-era nuclear material from a clandestine Syrian site — "Site 99," tied to the old Al-Kibar reactor project — as a possible template for extracting Iran's enriched uranium under a future arrangement. Israel's stated position is that any such deal requires the Iranian regime to first be "significantly weakened."

ANALYTICAL READ

This assessment is sourced to unnamed Israeli security officials briefing the press, which makes it a negotiating position aired publicly, not a settled U.S.-Israel understanding. Note the asymmetry underneath the apparent agreement: Washington's interest is a verifiable, negotiated drawdown of Iran's nuclear capacity; Israel's

stated precondition is regime weakness first. Those are compatible goals but different sequencing, and sequencing is usually where U.S.-Israel coordination breaks down.

Jerusalem Post — jpost.com/middle-east/iran-news/article-905264

IDF, Shin Bet report killing Hamas commander in Gaza City strike

The IDF and Shin Bet say they killed Hamas commander Jamal Mahmoud Abu Kamil in a targeted strike in Gaza City on August 13, according to Israeli reporting.

WHY IT MATTERS

A targeted-killing operation running in parallel with a U.S.-brokered ceasefire and disarmament push is worth watching for whether it signals continued military pressure used as leverage in the Kushner talks, or a military track not fully coordinated with the political leadership's diplomacy.

Jerusalem Post — jpost.com/israel-news

ITALY · ROME · THE VATICAN

Pope Leo XIV: "The cry of displaced children rises to God today"

The Holy See Press Office released Pope Leo XIV's Message for the 112th World Day of Migrants and Refugees today, to be observed September 27 under the theme "Even Just One of These Children," drawn from the Gospel of Matthew. The Pope wrote: "The cry of displaced children rises to God today," and warned against treating migration as a matter of statistics: "The Gospel invites us not to calculate: even one. Every child, every human being, possesses an infinite dignity." He catalogued the specific harms facing migrant minors — family separation, trafficking, recruitment into armed conflict, sexual violence, and "the tragic situation of those separated from their parents because of repatriation" — and called on civil institutions to adopt "effective legal instruments of protection, the promotion of family reunification, and the prevention of the trauma caused by separation." He urged "an urgent change of perspective," shifting the debate "from the mere management of migration to the full and immediate protection of human rights."

Vatican News — vaticannews.va/en/pope/news/2026-08/pope-leo-xiv-letter-cardinal-roche-oregon-liturgical-formation.html

Pope to Oregon liturgy meeting: fidelity to "approved texts and instructions"

Pope Leo XIV sent a message today to Cardinal Arthur Roche, Prefect of the Dicastery for Divine Worship and the Discipline of the Sacraments, for a Vatican-organized meeting running August 14-19 at the Benedictine Abbey of Mount Angel in Oregon on the liturgical formation of God's people — convened in response to Pope Francis's apostolic letter *Desiderio Desideravi*. The Pope wrote that Sunday Mass is the Church's most frequent and practical opportunity for liturgical formation, and that these celebrations must "promote an ever deeper understanding of the *ars celebrandi*, expressed not only by the celebrant of the liturgy, but also by the entire assembly." Invoking his own recent catechesis on the Second Vatican Council's *Sacrosanctum Concilium*, he said: "we must emphasize the

need for fidelity to the approved texts and instructions" promulgated by Popes Paul VI and John Paul II, adding that such fidelity must spring "from an inner attitude of openness and trust in God."

WHY IT MATTERS

Leo XIV is signaling continuity with liturgical discipline over experimentation — relevant to the live fault line in U.S. Catholicism over restrictions on the Traditional Latin Mass, and to how far parishes and dioceses can depart from the promulgated rite.

Vatican News — vaticannews.va/en/pope/news/2026-08/pope-leo-xiv-letter-cardinal-roche-oregon-liturgical-formation.html

Vatican sends 100,000 euros to earthquake-stricken Colombia

The Dicastery for the Service of Charity sent 100,000 euros to Caritas Colombia — the Church's centralized relief-coordination body in the country — to aid dioceses hit by the magnitude-7.4 earthquake that struck Colombia August 10, with the death toll now reported above 265. At his August 12 general audience, Pope Leo said: "As I pray to the Lord for the eternal rest of the deceased, I assure my prayers for their families and all those who have been affected by this tragedy. I express my gratitude to all those working in rescue efforts." Further aid is being coordinated through papal almoner Archbishop Luis Marin de San Martin, the apostolic nunciature in Colombia, and the Colombian bishops' conference.

Vatican News — vaticannews.va/en/pope/news/2026-08/pope-leo-financial-aid-colombia-earthquake.html

Pope to spend the Assumption at Castel Gandolfo

The Vatican confirmed Pope Leo will celebrate the Solemnity of the Assumption of the Blessed Virgin Mary (August 15) at Castel Gandolfo, where he is staying through August 18.

Vatican News — vaticannews.va/en/pope/news/2026-08/pope-leo-to-return-to-castel-gandolfo-until-18-august.html

WORLD

Colombia earthquake toll passes 265 as relief effort widens

Colombia's earthquake death toll has climbed past 265 as recovery work continues following the August 10 quake; the Vatican's rapid aid commitment, detailed above, is part of a broader relief effort now coordinating Church, state, and international donors.

WHY IT MATTERS

Disaster diplomacy is one of the few lanes where Rome moves faster and more visibly than most secular institutions — part of why Leo XIV's early, concrete financial commitment is getting notice well beyond Catholic media.

Angelus News — angelusnews.com/news/world/pope-colombia-donation/

RESEARCH & LONG READS

"The Nine Lives of Employment Division v. Smith"

SCOTUSblog, May 2026

A survey of how thoroughly discredited the Court's 1990 *Smith* decision is across the ideological spectrum, and why the justices keep declining to formally overrule it despite repeated invitations to do so. Directly relevant to today's *St. Mary Catholic Parish v. Roy* grant: this piece maps the doctrinal terrain the Court will be walking into on November 3, and argues a full overruling remains less likely than another narrow, case-specific exception.

SCOTUSblog — scotusblog.com/2026/05/the-nine-lives-of-employment-division-v-smith/

Blaine Hutchison, "Revisiting Employment Division v. Smith"

University of Cincinnati Law Review

Argues from text, purpose, and original meaning that *Smith* misread the Free Exercise Clause as an equal-protection rule rather than a substantive liberty, leaving religious exercise with only rational-basis protection whenever a burden arrives wrapped in a neutral, generally applicable law. The strongest available brief for why *St. Mary* should go further than a *Carson v. Makin*-style carve-out and revisit *Smith* directly.

Univ. of Cincinnati Law Review — scholarship.law.uc.edu/cgi/viewcontent.cgi?article=1465&context=uclr